Minutes of the Special Meeting of the Council of the Corporation of the Town of Ajax Thursday, February 11, 2021

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Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies (exited at 6:11 p.m.)
	Councillors	R. Tyler Morin
		A. Khan
		L. Bower

1. Call to Order & Land Acknowledgement

Mayor Collier called the meeting to order at 1:34 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

With the consent of Members present, item 4.1 was advanced in the order business.

4. Presentations

4.1 Workshop: Envision Durham Municipal Comprehensive Review – Requests for Employment Area Conversions

Sean McCullough, Supervisor of Policy Planning & Research, delivered a presentation on Envision Durham Municipal Comprehensive Review – Request for Employment Area Conversions. S. McCullough discussed provincial planning policy documents, the growth plan for the Greater Golden Horseshoe, context for Durham Region and Ajax, employment areas, conversion criteria, the Envision Durham process, and land needs assessment.

Council Members asked questions regarding projected employment growth, density targets, intensification opportunities and targets, provincial policy directives to increase intensification, availability of vacant employment lands, and costs associated with urban sprawl. S. McCullough and Geoff Romanowski, Director of Planning & Development Services, responded to questions from Council Members. Mayor Collier discussed limitations on land availability in the Town of Ajax and the fixed urban boundary.

S. McCullough continued his presentation and discussed types of employment, employment areas and the importance of protecting employment lands/areas. Council Members asked questions regarding opportunities to attract a diverse employment base, absorption trends, servicing requirements, current land inventory, employment densities and projections. S. McCullough and Stev Andis, Manager of Planning, responded to questions from Council Members.

S. McCullough reviewed the MCR process, localized criteria, the Region's Council approved criteria and the Town's position. S. McCullough reviewed employment area conversion requests.

Conversion Request #CNR04

Council Members asked questions regarding the current designation, projected employment figures and traffic patterns. S. McCullough responded to questions from Council members.

Conversion Request #CNR-07

Council Members asked questions regarding current designation, conversion options, proposed land uses, sustainability for high density residential, current development on

serviced lands, and building special policy framework into the Region's Official Plan. S. McCullough and G. Romanowski responded to questions from Members of Council.

Mayor Collier vacated the Chair. Regional Councillor Dies assumed the Chair.

Motion:

Moved by: S. Collier
Seconded by: S. Lee

That staff be directed to advise the Region of Durham that Ajax Council is in support of conversion request #CNR-07, subject to policy being implemented into the Region's Official Plan that requires, for example:

1. Minimum 50 jobs/hectare, no exceptions;
2. Development must maintain the retail/office/residential levels shown in the concepts as the bare minimum when site plan submitted;
3. High density residential only;
4. Agreement not to submit a site plan prior to zoning bylaw implementation;
5. Agreement not to appeal to LPAT;
6. Agreement that any conversion only be for the lands specified in the concept;
7. Agreement on timeline, site plan must be submitted with XX months of zoning bylaw completion;
8. The agreement be binding in the event of sale of the lands to another developer;
9. Agreement that employment portions be 50% occupied prior to commencing any residential component. In the event where it is a group of buildings where some are purely residential, employment must be 70% occupied;
10. Majority of parking is underground; and
11. Agreement that this does not establish the principle of residential use.

And that the developer agree to enter into an agreement with the Town of Ajax in agreement with the terms above.

CARRIED

Recorded Vote

In Favour: Mayor Collier, Councillor Bower, Regional Councillor Crawford, Regional Councillor Lee, Councillor Tyler Morin

Opposed: Regional Councillor Dies

Mayor Collier resumed the Chair.

Conversion Request #CNR-09

Members of Council sought clarification on permitted uses under the Town of Ajax Official Plan Area Specific Policy 6.18. S. McCullough responded to questions from Members of Council.

Conversion Request #CNR-14

Council Members asked questions regarding current use, future development and removal of current development to permit residential use. Council Members sought clarification regarding the conversion area and job density targets on the existing application. S. McCullough responded to questions from Council Members.

Conversion Request #CNR-15

Members of Council discussed the conveyance of land to Grandview Children's Centre and Schlegel Village. Members of Council asked questions regarding the MZO process and next steps. S. McCullough and G. Romanowski responded to questions from Council Members.

Mayor Collier vacated the Chair. Regional Councillor Dies assumed the Chair.

Motion:

Moved by: S. Collier
Seconded by: A. Khan

That staff be directed to advise the Region of Durham that Ajax Council is in support of conversion request #CNR-15, subject to policy being implemented into the Region's Official Plan that requires, at a minimum:

1. That the approx. 1.5 acre portion to the far north of the parcel as identified in the concept drawing be conveyed to Grandview Children's Centre and remain zoned PE;
2. That the approx. 6.5 acre parcel as identified in the concept drawing and subject to a provincial MZO be sold to Schlegel Village for the development of a 192 bed long term care facility with an associated retirement home; and
3. That the balance of the lands may be developed as identified in the concept drawing.

And, that the developer agree to enter into a development agreement between the Developer and the Town of Ajax in agreement of the terms above.

CARRIED

Recorded Vote

In Favour: Mayor Collier, Councillor Bower, Regional Councillor Crawford, Regional Councillor Lee, Councillor Tyler Morin, Regional Councillor Dies

Opposed: None

Mayor Collier resumed the Chair.

Council recessed at 4:33 p.m.

Council resumed at 4:48 p.m.

Conversion Request #CNR-19

Council Members asked questions regarding future employment uses, projected demand for employment lands, risk associated with Ontario Municipal Board ("OMB") Decision PL 050180 and the structure of the employment area. S. McCullough and G. Romanowski responded to questions from Council Members.

Mayor Collier vacated the Chair. Regional Councillor Dies assumed the Chair.

Motion:

Moved by: S. Collier
Seconded by: S. Lee

That staff be directed to advise the Region of Durham that Ajax Council is in support of conversion request #CNR-19 in principle subject to a satisfactory legal opinion that the Town would not be at legal risk with regards to the prior OMB decision, and subject to policy being implemented into the Region's Official Plan that requires, for example:

1. Minimum 50 jobs/hectare, no exceptions;
2. Development to maintain the retail/office/residential levels shown in the concepts as the bare minimum when site plan submitted;
3. High density residential only;
4. Agreement not to submit a site plan prior to zoning bylaw implementation;
5. Agreement not to appeal to LPAT;
6. Agreement that any conversion only be for the lands specified in the concept, specifically lands bounded by Spitty Rd to the south, Penn-Gaskell Dr to the east, Salem Rd to the north and the existing high schools to the west;
7. Agreement on timeline, site plan must be submitted with XX months of zoning bylaw completion;
8. The agreement be binding in the event of sale of the lands to another developer;
9. Agreement that employment portions be 50% occupied prior to commencing any residential component. In the event where it is a group of buildings where some are purely residential, employment must be 70% occupied;
10. Majority of parking is underground; and

11. Agreement that this does not establish the principle of residential use.

And, that the developer agree to enter into an agreement with the Town of Ajax in agreement with the terms above.

CARRIED

Recorded Vote

In Favour: Mayor Collier, Councillor Bower, Regional Councillor Crawford, Councillor Khan, Councillor Tyler Morin

Opposed: Regional Councillor Dies, Regional Councillor Lee

Mayor Collier resumed the Chair.

Conversion Request #CNR-20

Council Members asked questions regarding the size of the property, income opportunities for the Town through municipal parking, and development plans for the remainder of the property. S. McCullough and G. Romanowski responded to questions from Council Members.

Mayor Collier vacated the Chair. Regional Councillor Dies assumed the Chair.

Motion:

Moved by: S. Collier
Seconded by: M. Crawford

That staff be directed to advise the Region of Durham that Ajax Council is in support of conversion request #CNR-20, subject to policy being implemented into the Region's Official Plan that requires, for example:

1. Minimum 50 jobs/hectare, no exceptions;
2. Development to maintain the retail/office/residential levels shown in the concepts as the bare minimum when site plan submitted;
3. High density residential only;
4. Agreement not to submit a site plan prior to zoning bylaw implementation;
5. Agreement not to appeal to LPAT;
6. Agreement that any conversion only be for the lands specified in the concept, specifically lands north of the currently approved hotel and convention centre;
7. Agreement on timeline, site plan must be submitted with XX months of zoning bylaw completion;
8. The agreement be binding in the event of sale of the lands to another developer;
9. Agreement that employment portions be 50% occupied prior to commencing any residential component. In the event where it is a group of buildings where some are purely residential, employment must be 70% occupied;
10. Majority of parking is underground; and
11. Agreement that this does not establish the principle of residential use.

And, that the developer agree to enter into an agreement with the Town of Ajax in agreement with the terms above.

CARRIED

Recorded Vote

In Favour: Mayor Collier, Councillor Bower, Regional Councillor Crawford, Councillor Khan, Regional Councillor Lee, Councillor Tyler Morin

Opposed: Regional Councillor Dies

Mayor Collier resumed the Chair.

Conversion Request #CNR-33

Council Members asked questions regarding the conversion request, density on the lands, and historical particulars of the site. S. McCullough and G. Romanowski responded to questions from Council Members.

Motion:

Moved by: S. Lee
Seconded by: M. Crawford

That staff be directed to advise the Region of Durham that Ajax Council is in support of conversion request #CNR-33.

CARRIED

Recorded Vote

In Favour: Regional Councillor Lee, Regional Councillor Crawford, Councillor Khan, Councillor Tyler Morin, Mayor Collier

Opposed: Councillor Bower, Regional Councillor Dies

3. Departmental Reports

3.1 Request from Annandale Park Developments Ltd. for Minister's Zoning Order: 221 Church Street South, Ajax

G. Romanowski provided background information on the subject lands and reviewed the staff report and recommendations.

Members of Council asked questions regarding the scope of the project, Local Planning Appeal Tribunal ("LPAT") appeals, MZO status, Toronto and Region Conservation Authority ("TRCA") concerns, traffic studies and infrastructure and requirements at the upper tier municipality. G. Romanowski and Shane Baker, Chief Administrative Officer, responded to questions from Council Members.
Regional Councillor Dies exited the meeting at 6:11 p.m.

Motion:

Moved by: L. Bower
Seconded by: A. Khan

That this report be received by Council for information.

CARRIED

Mayor Collier vacated the Chair. Regional Councillor Lee assumed the Chair.

Motion:

Moved by: S. Collier
Seconded by: L. Bower

1. That the Town of Ajax supports the request from Annandale Park Developments Ltd. for a Minister's Zoning Order (MZO) to implement the approvals made under Town of Ajax By-law 52-2020, as outlined in its letter to the Town dated February 10, 2021; and

2. That a copy of this resolution be sent to the Honourable Steve Clark, Minister of Municipal Affairs Housing, and the Region of Durham.

CARRIED

Recorded Vote

In Favour: Mayor Collier, Councillor Bower, Councillor Khan, Councillor Tyler Morin

Opposed: Regional Councillor Lee, Regional Councillor Crawford

Mayor Collier resumed the Chair.

5. Confirming By-law

Moved by: S. Lee
Seconded by: M. Crawford

That By-law number 10-2021 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its special meeting held on February 11, 2021 be read a first, second and third time and passed.

CARRIED

6. Adjournment

Moved by: R. Tyler Morin
Seconded by: J. Dies

That the February 11, 2021 special meeting of the Council of the Town of Ajax be adjourned. (6:33 p.m.)

CARRIED

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Mayor

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D-Clerk